

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

February 20, 2025

SENATE BILL NO. 516

By: Alvord of the Senate

and

Dempsey of the House

An Act relating to professions and occupations; amending 59 O.S. 2021, Sections 1151.15 and 1151.18, which relate to the Roofing Contractor Registration Act; modifying certain duties of registrar upon receipt of certain complaints to record date received and process certain complaint; modernizing direct access system requirements; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1151.15, is amended to read as follows:

Section 1151.15. A. The Roofing Hearing Board is authorized to investigate any written complaint received pursuant to the Roofing Contractor Registration Act, including any person to the extent necessary to determine if the person is engaged in violations of the provisions of the Roofing Contractor Registration Act, including unlawful activity of the practice of contracting for roofing work without a valid registration, whether the matter is prosecuted administratively through the Roofing Hearing Board or referred for

1 criminal prosecution. The Board may refer the matter for
2 prosecution whether or not the person ceases the unlawful practice
3 of contracting for roofing work without a valid registration.

4 B. Service of the notice of violation or citation may be in
5 person or by certified mail at the last-known business address or
6 residence address of the person cited.

7 C. A notice of violation and citation may contain a cease and
8 desist order for residential roofing contractor work if the
9 homeowner has been provided the required disclosure and has
10 exercised the homeowner's option to cancel the contract as provided
11 in subsection I of Section 1151.5 of this title, or at any time
12 during commercial roofing contractor work.

13 D. The registrar shall read each complaint received and shall
14 ~~enter a notation in the individual roofing contractor's record~~
15 ~~showing~~ record the date that the verified complaint was received and
16 ~~the nature of~~ process the complaint as provided by law. The
17 registrar shall notify the roofing contractor against whom the
18 complaint is made, in writing, within five (5) days of the receipt
19 of the written complaint. The roofing contractor shall have ten
20 (10) days to respond, in writing, to the registrar. If a response
21 to the complaint is received by the registrar, whether admitting or
22 denying the basis of the complaint, a copy of both the complaint and
23 the response shall be sent to the district attorney along with the
24 results of any investigation by the Board, if the Board does not

1 retain the matter and refers the complaint to the district attorney.
2 If no response is received, the complaint may still be referred to
3 the district attorney, along with the results of any investigation
4 by the Board. The Board or a Committee of Roofing Examiners member
5 is authorized to assist in any investigation of a roofing complaint
6 referred to the district attorney, if requested by the district
7 attorney. ~~In addition, the registrar shall enter a notation in the~~
8 ~~individual roofing contractor's record showing the date that the~~
9 ~~roofing contractor's response was received, if any, and whether the~~
10 ~~response admitted or denied the basis of the complaint.~~

11 E. Following referral of a complaint to the district attorney,
12 if the roofing contractor is adjudicated by the court for an act or
13 omission specified in subsection A of Section 1151.14 of this title,
14 or upon a conviction for any violation of the provisions of the
15 Roofing Contractor Registration Act, the registrar, when ordered by
16 the court, shall suspend, revoke or deny the roofing contractor's
17 registration for the period of time specified by the court, and if
18 the court orders the registration suspended, revoked or denied, and
19 yet fails to set the term of such suspension, revocation or denial,
20 the period shall be six (6) months.

21 F. The registrar shall not renew, reinstate, or issue a new
22 roofing contractor registration to any person subject to any term of
23 denial, suspension or revocation until such term has been completed,
24

1 and thereafter, the person makes application and pays required fees
2 pursuant to Sections 1151.8 and 1151.12 of this title.

3 G. It shall be unlawful for a person to obtain or attempt to
4 obtain a roofing contractor registration certificate under any other
5 name during any period when the roofing contractor's registration is
6 suspended or revoked. Upon conviction of a violation of this
7 subsection, the person shall be guilty of a misdemeanor as provided
8 in Section 1151.3 of this title. A business firm, partnership,
9 association, corporation, limited liability company, or other group
10 or combination thereof acting as a unit whose registration
11 certificate is suspended or revoked includes all of the members,
12 partners, officers, and agents acting under that roofing contractor
13 registration certificate when such persons are specified on and did
14 sign the application or renewal form.

15 SECTION 2. AMENDATORY 59 O.S. 2021, Section 1151.18, is
16 amended to read as follows:

17 Section 1151.18. Upon request, the registrar shall verify a
18 roofing contractor registration number to city, county and state
19 enforcement officials and to the public. The registrar shall
20 establish through the Internet or other technology a verification
21 system or direct access system for confirming roofing contractor
22 registration certificates and status of registration maintained by
23 the Construction Industries Board. ~~The system shall include the~~
24 ~~notation of each complaint received against an individual roofing~~

1 ~~contractor, his or her response to each complaint by noting whether~~
2 ~~the roofing contractor admits or denies the allegation, any court~~
3 ~~disposition of a complaint, if known, and any conviction for a~~
4 ~~violation of the provisions of this act. In addition, the system~~
5 ~~may include a notation for any conviction of a criminal violation in~~
6 ~~this state, another state, or the United States when disclosed by a~~
7 ~~criminal history records search on the individual roofing~~
8 ~~contractor.~~ Disclosure of any information through use of the
9 roofing contractor registration system or information maintained by
10 the registrar shall not be deemed to be an endorsement of any
11 roofing contractor or determination of any facts, qualifications,
12 information or reputation of any roofing contractor by the
13 registrar, the state, the Construction Industries Board, or any of
14 their respective agents, officers, employees or assigns.

15 SECTION 3. This act shall become effective November 1, 2025.

16 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
17 February 20, 2025 - DO PASS
18
19
20
21
22
23
24